

Henry James, Jr.

William Dean Howells

An abstract geometric pattern composed of various purple shapes and lines on a teal background. The shapes include a large triangle, a square, a circle, and several lines of different lengths and orientations, some forming a larger, complex shape that resembles a stylized letter or symbol.

Project Gutenberg

Henry James, Jr.

William Dean Howells

Project Gutenberg

The Project Gutenberg eBook of Henry James, Jr.

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Henry James, Jr.

Author: William Dean Howells

Release date: November 1, 1996 [eBook #723]

Most recently updated: January 1, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/723

Credits: Etext produced by Anthony J. Adam.

HTML file produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK HENRY JAMES,
JR. ***

HENRY JAMES, JR.

By William Dean Howells

The events of Mr. James's life—as we agree to understand events—may be told in a very few words. His race is Irish on his father's side and Scotch on his mother's, to which mingled strains the generalizer may attribute, if he likes, that union of vivid expression and dispassionate analysis which has characterized his work from the first. There are none of those early struggles with poverty, which render the lives of so many distinguished Americans monotonous reading, to record in his case: the cabin hearth-fire did not light him to the youthful pursuit of literature; he had from the start all those advantages which, when they go too far, become limitations.

He was born in New York city in the year 1843, and his first lessons in life and letters were the best which the metropolis—so small in the perspective diminishing to that date—could afford. In his twelfth year his family went abroad, and after some stay in England made a long sojourn in France and Switzerland. They returned to America in 1860, placing themselves at Newport, and for a year or two Mr. James was at the Harvard Law School, where, perhaps, he did not study a great deal of law. His father removed from Newport to Cambridge in 1866, and there Mr. James remained till he went abroad, three years later, for the residence in England and Italy which, with infrequent visits home, has continued ever since.

It was during these three years of his Cambridge life that I became acquainted with his work. He had already printed a tale—"The Story of a Year"—in the "Atlantic Monthly," when I was asked to be Mr. Fields's assistant in the management, and it was my fortune to read Mr. James's

second contribution in manuscript. "Would you take it?" asked my chief. "Yes, and all the stories you can get from the writer." One is much securer of one's judgment at twenty-nine than, say, at forty-five; but if this was a mistake of mine I am not yet old enough to regret it. The story was called "Poor Richard," and it dealt with the conscience of a man very much in love with a woman who loved his rival. He told this rival a lie, which sent him away to his death on the field,—in that day nearly every fictitious personage had something to do with the war,—but Poor Richard's lie did not win him his love. It still seems to me that the situation was strongly and finely felt. One's pity went, as it should, with the liar; but the whole story had a pathos which lingers in my mind equally with a sense of the new literary qualities which gave me such delight in it. I admired, as we must in all that Mr. James has written, the finished workmanship in which there is no loss of vigor; the luminous and uncommon use of words, the originality of phrase, the whole clear and beautiful style, which I confess I weakly liked the better for the occasional gallicisms remaining from an inveterate habit of French. Those who know the writings of Mr. Henry James will recognize the inherited felicity of diction which is so striking in the writings of Mr. Henry James, Jr. The son's diction is not so racy as the father's; it lacks its daring, but it is as fortunate and graphic; and I cannot give it greater praise than this, though it has, when he will, a splendor and state which is wholly its own.

Mr. James is now so universally recognized that I shall seem to be making an unwarrantable claim when I express my belief that the popularity of his stories was once largely confined to Mr. Field's assistant. They had characteristics which forbade any editor to refuse them; and there are no anecdotes of thrice-rejected manuscripts finally printed to tell of him; his work was at once successful with all the magazines. But with the readers of "The Atlantic," of "Harper's," of "Lippincott's," of "The Galaxy," of "The Century," it was another affair. The flavor was so strange, that, with rare exceptions, they had to "learn to like" it. Probably few writers have in the same degree compelled the liking of their readers. He was reluctantly accepted, partly through a mistake as to his attitude—through the confusion of his point of view with his private opinion—in the reader's mind. This confusion caused the tears of rage which bedewed our continent in behalf of the "average American girl" supposed to be satirized in *Daisy Miller*, and

prevented the perception of the fact that, so far as the average American girl was studied at all in Daisy Miller, her indestructible innocence, her invulnerable new-worldliness, had never been so delicately appreciated. It was so plain that Mr. James disliked her vulgar conditions, that the very people to whom he revealed her essential sweetness and light were furious that he should have seemed not to see what existed through him. In other words, they would have liked him better if he had been a worse artist—if he had been a little more confidential.

But that artistic impartiality which puzzled so many in the treatment of Daisy Miller is one of the qualities most valuable in the eyes of those who care how things are done, and I am not sure that it is not Mr. James's most characteristic quality. As "frost performs the effect of fire," this impartiality comes at last to the same result as sympathy. We may be quite sure that Mr. James does not like the peculiar phase of our civilization typified in Henrietta Stackpole; but he treats her with such exquisite justice that he lets US like her. It is an extreme case, but I confidently allege it in proof.

His impartiality is part of the reserve with which he works in most respects, and which at first glance makes us say that he is wanting in humor. But I feel pretty certain that Mr. James has not been able to disinherit himself to this degree. We Americans are terribly in earnest about making ourselves, individually and collectively; but I fancy that our prevailing mood in the face of all problems is that of an abiding faith which can afford to be funny. He has himself indicated that we have, as a nation, as a people, our joke, and every one of us is in the joke more or less. We may, some of us, dislike it extremely, disapprove it wholly, and even abhor it, but we are in the joke all the same, and no one of us is safe from becoming the great American humorist at any given moment. The danger is not apparent in Mr. James's case, and I confess that I read him with a relief in the comparative immunity that he affords from the national facetiousness. Many of his people are humorously imagined, or rather humorously SEEN, like Daisy Miller's mother, but these do not give a dominant color; the business in hand is commonly serious, and the droll people are subordinated. They abound, nevertheless, and many of them are perfectly new finds, like Mr. Tristram in "The American," the bill-paying father in the "Pension Beaurepas," the anxiously Europeanizing mother in the same story, the amusing little Madame de Belgarde, Henrietta Stackpole, and even

Newman himself. But though Mr. James portrays the humorous in character, he is decidedly not on humorous terms with his reader; he ignores rather than recognizes the fact that they are both in the joke.

If we take him at all we must take him on his own ground, for clearly he will not come to ours. We must make concessions to him, not in this respect only, but in several others, chief among which is the motive for reading fiction. By example, at least, he teaches that it is the pursuit and not the end which should give us pleasure; for he often prefers to leave us to our own conjectures in regard to the fate of the people in whom he has interested us. There is no question, of course, but he could tell the story of Isabel in "The Portrait of a Lady" to the end, yet he does not tell it. We must agree, then, to take what seems a fragment instead of a whole, and to find, when we can, a name for this new kind in fiction. Evidently it is the character, not the fate, of his people which occupies him; when he has fully developed their character he leaves them to what destiny the reader pleases.

The analytic tendency seems to have increased with him as his work has gone on. Some of the earlier tales were very dramatic: "A Passionate Pilgrim," which I should rank above all his other short stories, and for certain rich poetical qualities, above everything else that he has done, is eminently dramatic. But I do not find much that I should call dramatic in "The Portrait of a Lady," while I do find in it an amount of analysis which I should call superabundance if it were not all such good literature. The novelist's main business is to possess his reader with a due conception of his characters and the situations in which they find themselves. If he does more or less than this he equally fails. I have sometimes thought that Mr. James's danger was to do more, but when I have been ready to declare this excess an error of his method I have hesitated. Could anything be superfluous that had given me so much pleasure as I read? Certainly from only one point of view, and this a rather narrow, technical one. It seems to me that an enlightened criticism will recognize in Mr. James's fiction a metaphysical genius working to aesthetic results, and will not be disposed to deny it any method it chooses to employ. No other novelist, except George Eliot, has dealt so largely in analysis of motive, has so fully explained and commented upon the springs of action in the persons of the drama, both before and after the facts. These novelists are more alike than any others in their processes, but with George Eliot an ethical purpose is

dominant, and with Mr. James an artistic purpose. I do not know just how it should be stated of two such noble and generous types of character as Dorothea and Isabel Archer, but I think that we sympathize with the former in grand aims that chiefly concern others, and with the latter in beautiful dreams that primarily concern herself. Both are unselfish and devoted women, sublimely true to a mistaken ideal in their marriages; but, though they come to this common martyrdom, the original difference in them remains. Isabel has her great weaknesses, as Dorothea had, but these seem to me, on the whole, the most nobly imagined and the most nobly intentioned women in modern fiction; and I think Isabel is the more subtly divined of the two. If we speak of mere characterization, we must not fail to acknowledge the perfection of Gilbert Osmond. It was a profound stroke to make him an American by birth. No European could realize so fully in his own life the ideal of a European dilettante in all the meaning of that cheapened word; as no European could so deeply and tenderly feel the sweetness and loveliness of the English past as the sick American, Searle, in "The Passionate Pilgrim."

What is called the international novel is popularly dated from the publication of "Daisy Miller," though "Roderick Hudson" and "The American" had gone before; but it really began in the beautiful story which I have just named. Mr. James, who invented this species in fiction, first contrasted in the "Passionate Pilgrim" the New World and Old World moods, ideals, and prejudices, and he did it there with a richness of poetic effect which he has since never equalled. I own that I regret the loss of the poetry, but you cannot ask a man to keep on being a poet for you; it is hardly for him to choose; yet I compare rather discontentedly in my own mind such impassioned creations as Searle and the painter in "The Madonna of the Future" with "Daisy Miller," of whose slight, thin personality I also feel the indefinable charm, and of the tragedy of whose innocence I recognize the delicate pathos. Looking back to those early stories, where Mr. James stood at the dividing ways of the novel and the romance, I am sometimes sorry that he declared even superficially for the former. His best efforts seem to me those of romance; his best types have an ideal development, like Isabel and Claire Belgarde and Bessy Alden and poor Daisy and even Newman. But, doubtless, he has chosen wisely; perhaps the romance is an outworn form, and would not lend itself to the

reproduction of even the ideality of modern life. I myself waver somewhat in my preference—if it is a preference—when I think of such people as Lord Warburton and the Touchetts, whom I take to be all decidedly of this world. The first of these especially interested me as a probable type of the English nobleman, who amiably accepts the existing situation with all its possibilities of political and social change, and insists not at all upon the surviving feudalities, but means to be a manly and simple gentleman in any event. An American is not able to pronounce as to the verity of the type; I only know that it seems probable and that it is charming. It makes one wish that it were in Mr. James's way to paint in some story the present phase of change in England. A titled personage is still mainly an inconceivable being to us; he is like a goblin or a fairy in a storybook. How does he comport himself in the face of all the changes and modifications that have taken place and that still impend? We can hardly imagine a lord taking his nobility seriously; it is some hint of the conditional frame of Lord Warburton's mind that makes him imaginable and delightful to us.

It is not my purpose here to review any of Mr. James's books; I like better to speak of his people than of the conduct of his novels, and I wish to recognize the fineness with which he has touched-in the pretty primness of Osmond's daughter and the mild devotedness of Mr. Rosier. A masterly hand is as often manifest in the treatment of such subordinate figures as in that of the principal persons, and Mr. James does them unerringly. This is felt in the more important character of Valentin Belgarde, a fascinating character in spite of its defects,—perhaps on account of them—and a sort of French Lord Warburton, but wittier, and not so good. "These are my ideas," says his sister-in-law, at the end of a number of inanities. "Ah, you call them ideas!" he returns, which is delicious and makes you love him. He, too, has his moments of misgiving, apparently in regard to his nobility, and his acceptance of Newman on the basis of something like "manhood suffrage" is very charming. It is of course difficult for a remote plebeian to verify the pictures of legitimist society in "The American," but there is the probable suggestion in them of conditions and principles, and want of principles, of which we get glimpses in our travels abroad; at any rate, they reveal another and not impossible world, and it is fine to have Newman discover that the opinions and criticisms of our world are so absolutely valueless in that sphere that his knowledge of the infamous crime of the

mother and brother of his betrothed will have no effect whatever upon them in their own circle if he explodes it there. This seems like aristocracy indeed! and one admires, almost respects, its survival in our day. But I always regretted that Newman's discovery seemed the precursor of his magnanimous resolution not to avenge himself; it weakened the effect of this, with which it had really nothing to do. Upon the whole, however, Newman is an adequate and satisfying representative of Americanism, with his generous matrimonial ambition, his vast good-nature, and his thorough good sense and right feeling. We must be very hard to please if we are not pleased with him. He is not the "cultivated American" who redeems us from time to time in the eyes of Europe; but he is unquestionably more national, and it is observable that his unaffected fellow-countrymen and women fare very well at Mr. James's hand always; it is the Europeanizing sort like the critical little Bostonian in the "Bundle of Letters," the ladies shocked at Daisy Miller, the mother in the "Pension Beaurepas" who goes about trying to be of the "native" world everywhere, Madame Merle and Gilbert Osmond, Miss Light and her mother, who have reason to complain, if any one has. Doubtless Mr. James does not mean to satirize such Americans, but it is interesting to note how they strike such a keen observer. We are certainly not allowed to like them, and the other sort find somehow a place in our affections along with his good Europeans. It is a little odd, by the way, that in all the printed talk about Mr. James—and there has been no end of it—his power of engaging your preference for certain of his people has been so little commented on. Perhaps it is because he makes no obvious appeal for them; but one likes such men as Lord Warburton, Newman, Valentin, the artistic brother in "The Europeans," and Ralph Touchett, and such women as Isabel, Claire Belgarde, Mrs. Tristram, and certain others, with a thoroughness that is one of the best testimonies to their vitality. This comes about through their own qualities, and is not affected by insinuation or by downright petting, such as we find in Dickens nearly always and in Thackeray too often.

The art of fiction has, in fact, become a finer art in our day than it was with Dickens and Thackeray. We could not suffer the confidential attitude of the latter now, nor the mannerism of the former, any more than we could endure the prolixity of Richardson or the coarseness of Fielding. These great men are of the past—they and their methods and interests; even

Trollope and Reade are not of the present. The new school derives from Hawthorne and George Eliot rather than any others; but it studies human nature much more in its wonted aspects, and finds its ethical and dramatic examples in the operation of lighter but not really less vital motives. The moving accident is certainly not its trade; and it prefers to avoid all manner of dire catastrophes. It is largely influenced by French fiction in form; but it is the realism of Daudet rather than the realism of Zola that prevails with it, and it has a soul of its own which is above the business of recording the rather brutish pursuit of a woman by a man, which seems to be the chief end of the French novelist. This school, which is so largely of the future as well as the present, finds its chief exemplar in Mr. James; it is he who is shaping and directing American fiction, at least. It is the ambition of the younger contributors to write like him; he has his following more distinctly recognizable than that of any other English-writing novelist. Whether he will so far control this following as to decide the nature of the novel with us remains to be seen. Will the reader be content to accept a novel which is an analytic study rather than a story, which is apt to leave him arbiter of the destiny of the author's creations? Will he find his account in the unflagging interest of their development? Mr. James's growing popularity seems to suggest that this may be the case; but the work of Mr. James's imitators will have much to do with the final result.

In the meantime it is not surprising that he has his imitators. Whatever exceptions we take to his methods or his results, we cannot deny him a very great literary genius. To me there is a perpetual delight in his way of saying things, and I cannot wonder that younger men try to catch the trick of it. The disappointing thing for them is that it is not a trick, but an inherent virtue. His style is, upon the whole, better than that of any other novelist I know; it is always easy, without being trivial, and it is often stately, without being stiff; it gives a charm to everything he writes; and he has written so much and in such various directions, that we should be judging him very incompletely if we considered him only as a novelist. His book of European sketches must rank him with the most enlightened and agreeable travelers; and it might be fitly supplemented from his uncollected papers with a volume of American sketches. In his essays on modern French writers he indicates his critical range and grasp; but he scarcely does more, as his

criticisms in "The Atlantic" and "The Nation" and elsewhere could abundantly testify.

There are indeed those who insist that criticism is his true vocation, and are impatient of his devotion to fiction; but I suspect that these admirers are mistaken. A novelist he is not, after the old fashion, or after any fashion but his own; yet since he has finally made his public in his own way of story-telling—or call it character-painting if you prefer,—it must be conceded that he has chosen best for himself and his readers in choosing the form of fiction for what he has to say. It is, after all, what a writer has to say rather than what he has to tell that we care for nowadays. In one manner or other the stories were all told long ago; and now we want merely to know what the novelist thinks about persons and situations. Mr. James gratifies this philosophic desire. If he sometimes forbears to tell us what he thinks of the last state of his people, it is perhaps because that does not interest him, and a large-minded criticism might well insist that it was childish to demand that it must interest him.

I am not sure that any criticism is sufficiently large-minded for this. I own that I like a finished story; but then also I like those which Mr. James seems not to finish. This is probably the position of most of his readers, who cannot very logically account for either preference. We can only make sure that we have here an annalist, or analyst, as we choose, who fascinates us from his first page to his last, whose narrative or whose comment may enter into any minuteness of detail without fatiguing us, and can only truly grieve us when it ceases.

*** END OF THE PROJECT GUTENBERG EBOOK HENRY JAMES,
JR. ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.